

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 12411 of 2016

Islam

.....Convict-appellant.

-Versus-

The State

.....Respondent.

Mr. Md. Mozammel Hossain, Advocate
.....For the appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.
.... For the respondent.

Heard and Judgment on 22.01.2024

Sheikh Abdul Awal, J:

This Criminal Appeal at the instance of convict appellant, Islam is directed against the judgment and order of conviction and sentence dated 22.05.2016 passed by the learned Special Sessions Judge, and Judge of Environment Appellate Court, Dhaka in Metro. Sessions Case No. 10077 of 2015 arising out of G.R No. 322 of 2015 corresponding to Tejgaon Police Station Case No. 73 dated 27.06.2015 convicting the accused-appellant under section 22(Ga) of the Madak Drobbya Niyontron Ain, 1990 and sentencing him thereunder to

suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 2,000/- (two thousand) in default to suffer simple imprisonment for 02 (two) months more.

The prosecution case, in brief, is that one, Enamul Haque, Inspector of Police, RAB-2 as informant on 27.06.2015 at about 13:10 hours lodged an Ejahar with Tejgaon Police Station against the accused-appellant stating, inter-alia, that on the basis of a secret information the informant along with RAB forces rushed to the palace of occurrence (street of east-south corner of Chatu Contractor's building, near about Mohila College under Tejgaon police station) while sensing the presence of RAB forces the accused-appellant tried to run-away but the informant party on chase apprehend the accused-appellant and on search, recovered total 70+70=140 bottles local made wine kept in 2 plastic white bags which valued at Taka 28,000/- (twenty eight thousand) and thereafter, the informant party seized those wine by preparing seizure list in presence of the witnesses.

Upon the aforesaid First Information Report, Tejgaon Police Station Case No. 73 dated 27.06.2015 under section 22(Ga) of the Madok Drabya Niyantaran Ain, 1990 was started against the convict-appellant.

Police after completion of usual investigation submitted charge sheet against the accused appellant being charge sheet No. 308 dated 25.07.2015 under section 22(Ga) of the Madok Drabya Niyantaran Ain, 1990.

Thereafter, in usual course the case record was sent to the Court of learned Metropolitan Sessions Judge, Dhaka wherein it was registered as Metro. Sessions Case No. 10077 of 2015. Subsequently, the case was transmitted to the Court of the learned Special Sessions Judge, and Judge of Environment Appellate Court, Dhaka for disposal wherein the accused-appellant was put on trial to answer a charge under section 22(Ga), of the Madok Drabya Niyantaran Ain, 1990 in which the accused-appellant pleaded not guilty and prayed to be tried stating that he has been falsely implicated in the case.

At the trial the prosecution side examined in all 07(seven) witnesses to prove its case, while the defence examined none.

On conclusion of trial, the learned Special Sessions Judge, and Environment Appellate Court, Dhaka by his judgment and order dated 22.05.2016 held the accused-appellant guilty under section 22(Ga) of the Drobbya

Niyontron Ain, 1990 and sentenced him thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 2,000/- (two thousand) in default to suffer simple imprisonment for 02(two) months more.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 22.05.2016, the accused-appellant preferred this criminal appeal.

Mr. Md. Mozammel Hossain, the learned Advocate appearing for the convict-appellant at the very outset submits that it is on record that the accused-appellant having already suffered his sentence for more than 1 year 6 months (pre and post trial) out of his 2 years sentence and in such facts and circumstances of the case his sentence may kindly be reduced to the period already undergone.

Ms. Kohenoor Akter, the learned Assistant Attorney-General, appearing on behalf of the State-Respondent supports the impugned judgment and order of conviction and sentence dated 22.05.2016, which was according to her just, correct and proper.

Having heard the learned counsel for the parties and having gone through the materials on record, the

only question that calls for our consideration in this appeal is whether the trial Court committed any error in finding the accused-appellants guilty of the offence under section 22(Ga) of the Drobbya Niyontron Ain, 1990 .

On scrutiny of the record, it appears that the informant party on the basis of a secret information rushed to the place of occurrence and apprehended the accused-appellant and on search, recovered total $(70+70)=140$ bottles local made wine which valued at Taka 28,000/- (twenty eight thousand) and seized those local made wine by preparing seizure list in presence of the witnesses. It further appears that at the trial the prosecution side to prove its case examined in all 07(seven) witnesses out of which seizure list witness namely PW-6 was declared hostile and other witnesses are members of law and enforces agencies, who in their respective deposition stated that the informant party apprehended the accused-appellant with total 140 bottles of local made wine (চোলাই মদ).

It is found that the trial Court below on due consideration of the entire evidence and materials on record found the accused-appellant guilty under section 22(Ga) of the Drobbya Niyontron Ain, 1990 and sentenced him thereunder to suffer rigorous

imprisonment for a period of 2(two) years and to pay a fine of Taka 2,000/- (two thousand) in default to suffer R.I. for 02 (two) months more.

On an analysis of the evidence of PWs, it appears that the prosecution witness namely PWs. 1-5 and PW-7 proved the prosecution case as to the time, place and manner of occurrence and thus the prosecution proved the guilt of the accused petitioner beyond reasonable doubt and accordingly the trial court found the accused appellant guilty for the offence under section 22(Ga) of the Drobbya Niyontron Ain, 1990. I find no flaw in the reasonings of the trial court or any ground to assail the impugned judgment and order. It further appears that the accused-appellant having already suffered his sentence more than 1 year and 6 months (pre and post trial) out of his 2 years sentence.

However, considering the law, facts and circumstances of the case as discussed above, particularly the fact that 140 bottles of চোলাই মদ was recovered from the possession of the accused which valued at Taka 28,000/- (twenty eight thousand) and the convict-appellant having already been suffered his sentence more than 1 year and 6 months (pre and post trial) out of his two years sentence and faced the agony of the protracted prosecution and also suffered mental

harassment for a long time, I think that, the ends of justice, will be met in the facts and circumstances of the case if the sentence of fine is maintained and the substantive sentence is reduced to the period already undergone, as prayed for.

Learned Assistant Attorney General has, of course, been able to defend this case on merits but practically has nothing to say insofar as reduction of sentence imposed upon the appellant is concerned.

The appeal is, consequently, disposed of with modification of sentence that the sentence of imprisonment for the offence is reduced to the period of sentence already undergone. Sentence of fine is, however, maintained. The accused-appellant may be discharged from his bail bonds, if he deposits the fine.

Send down the lower Court records at once.